
# The Clearing-House Mechanism: Consolidated briefing for PrepCom3

**Briefing: BBNJ PrepCom**
**February 2026**

## Executive Summary

The Agreement under the United Nations Convention on the Law of the Sea (UNCLOS) on the Conservation and Sustainable Use of Marine Biological Diversity of Areas Beyond National Jurisdiction (BBNJ Agreement) entered into force on 17 January 2026.

To prepare for the Agreement's entry into force and the first meeting of the Conference of the Parties (CoP), a UN Preparatory Commission (PrepCom) met twice in 2025 (14–25 April and 18–29 August) and will meet again in March 2026 (23 March–2 April). The PrepCom process is critical for developing a well-functioning operational framework for the Agreement. Well-structured, fair, and efficient institutions will shape its long-term success and determine how quickly global ambition can be turned into tangible results for ocean protection.

The Clearing-House Mechanism (Cl-HM) will play a central role in implementing the Agreement. Except for Part III on area-based management tools (ABMTs), all parts explicitly rely on its functions, and several subsidiary bodies depend on it to fulfill various tasks under their mandates.

This briefing serves as a consolidation of the High Seas Alliance briefings for the First and Second Sessions of the PrepCom. It provides reflections on key decisions for Parties at the Third Session of the PrepCom (PrepCom 3), where the operationalization of Cl-HM will remain an important priority. This includes establishing and improving upon entry into force/interim arrangements to bridge the period between the BBNJ Agreement's entry into force, which has now occurred, and the Cl-HM's full operationalization.

### Recommendations

While complete operationalization of the Cl-HM requires additional time and deliberation, key issues need to be addressed before or during PrepCom 3 so that Parties can comply with their information-sharing obligations under the Agreement:

- Parties will need **clear, practical guidance on how to submit information** according to their obligations (e.g., environmental impact assessment (EIA) reports).
- States should **review any interim arrangements** already in place and prepare specific feedback and suggestions for improvements during PrepCom 3.
- **Parties should adopt an ambitious roadmap for the rapid operationalization** of the Cl-HM at or shortly after PrepCom 3, drawing on the results of the Cl-HM consultant's study.[1] The roadmap should include a pilot phase between PrepCom 3 and the first CoP so that States can gain hands-on experience with the system, including training on how to use it.

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[1] A consultant has been tasked to deliver a study at PrepCom 3 on the technical aspects of the operationalization of the Clearing-House Mechanism under the BBNJ Agreement: https://www.un.org/bbnjagreement/sites/default/files/2025-10/20251016BBNJCHMStudyConsultancyTORs.pdf. Parts A and B of the study have been circulated with limited distribution and delegations have been invited to submit comments.

## 1. Purpose and main functions of the CI-HM

The CI-HM will play a foundational role in implementing the BBNJ Agreement by providing a centralized, open-access platform for cooperation and information exchange. All parts of the Agreement, except Part III on ABMTs[2], assign the CI-HM critical functions that are essential for effective implementation.

### Part II: Marine genetic resources, including the fair and equitable sharing of benefits

The CI-HM is fundamental to implementing Part II of the Agreement from the moment it enters into force. Parties must send notifications to the CI-HM at three key stages: before the collection of marine genetic resources (MGRs), after collection, and when MGRs or their Digital Sequence Information (DSI) are utilized (Art. 12(2)(5)(8)).

Upon receiving pre-cruise notifications, the CI-HM will generate a BBNJ standardized batch identifier (BSBI) (Art. 12(3))[3]. While the final design of this identifier remains under discussion, given the delay between entry into force and the CoP's consideration of specific modalities for the CI-HM's operation (Art. 51(2)), initial notifications will likely receive temporary identifiers until the CoP adopts the final syntax.

The CI-HM will serve as the primary information source for the Access and Benefit-Sharing Committee (ABSC) to monitor the implementation of Part II and recommend improvements to the CoP (Art. 16(3))[4]. It may also facilitate access to knowledge associated with MGRs, subject to free, prior, and informed consent (FPIC)[5], or the approval and involvement of Indigenous Peoples, and local communities, under mutually agreed terms (Art. 13).

### Part III: Area-based management tools, including MPAs

The Agreement designates the CI-HM as a centralized platform for accessing, providing, and disseminating information on the establishment and implementation of ABMTs, including marine protected areas (MPAs) (Art. 51(3)(a)(ii)). However, Part III of the Agreement does not specify when and how the CI-HM should perform this function, highlighting a need for clarification.

The CI-HM could support several functions under Part III, including making proposals and preliminary reviews public (Art. 20), facilitating consultations and assessments of proposals (Art. 21), coordinating emergency measures (Art. 24), and monitoring and review (Art. 26). With respect to ABMT modalities and technical needs, it could also manage information exchange related to cooperation with other instruments, frameworks, and bodies (IFBs).

### Part IV: Environmental impact assessments

The CI-HM will serve two basic functions related to EIAs:

1) Sharing information about planned activities that could affect Areas Beyond National Jurisdiction (ABNJ).
2) Enabling Parties to fulfill their notification obligations.

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[2] Part III of the Agreement does not explicitly mention the CI-HM, but the CI-HM could provide an important platform to share information related to proposed MPAs and ABMTs.
[3] The BBNJ standardized batch identifier was framed as a human and machine-readable digital group identifier for samples from one collection event, attached to individual samples. It will facilitate monitoring of implementation. See: Oldham, P., Chiarolla, C., Thambisetty, S. (2023) Digital Sequence Information in the UN High Seas Treaty: Insights from the Global Biodiversity Framework-related Decisions, LSE Law School Policy Briefing 53/2023.
[4] For more information see the High Seas Alliance BBNJ PrepCom briefing on the Access and Benefit Sharing Committee
[5] FPIC is a principle of international law used, among others, in the 1992 Convention on Biological Diversity (CBD) and the 2011 Nagoya Protocol in the context of access to genetic resources, and in the 2007 United Nations Declaration on the Rights of Indigenous Peoples (UNDRIP). A large body of practice and guidelines of applying FPIC exists from these other fora.

From entry into force, Part IV of the Agreement requires the following information to be shared through the CI-HM:

- Decisions not to prepare an EIA after screening (Art. 31(1a)),
- Draft EIA reports (Art. 33(3)),
- EIA reports (Art. 33(5)), including reports of assessments conducted under other instruments or frameworks, when appropriate (Art. 29(5)),
- Concerns registered and recommendations from the Scientific and Technical Body (STB), Parties, Indigenous Peoples, local communities, and others (Art. 37(4)),
- Decision documents (Art. 34(2), Art. 37(6)(b)),
- Monitoring and review reports (Art. 37(6)(a)).

Parties must also notify other Parties and stakeholders at key stages of the EIA process, including:

- Notice of a planned activity (Art. 32(1)),
- Notice of scoping (Art. 32(1)), draft EIAs (Art. 33(3)), and final EIAs (Art. 33(5)),
- Cases of unforeseen impacts or breaches of conditions (Art. 37(2)). The CoP, other Parties, and the public must be notified of these cases.

To ensure effective communication, the CI-HM should include an alert mechanism – such as email notifications – rather than relying solely on a passive website. This would keep Parties and stakeholders informed of relevant updates and newly uploaded information.

## Part V: Capacity-building and the transfer of marine technology

The CI-HM will serve two main functions regarding capacity-building and the transfer of marine technology (CBTMT)[6]:

1) Developing capacity needs assessments, which can be self-assessed or facilitated through the CBTMT Committee and the CI-HM (Art. 42(4)). The Agreement mandates these assessments but does not specify the CI-HM's exact role in the process.
2) Matching capacity needs with available support (Art. 51(3)(b)).

## Additional roles for the CI-HM

Beyond these core functions, the CI-HM could play an important role in facilitating the execution of the many information-sharing obligations related to ABMT proposals (Arts. 20, 21). It could also facilitate transparency across the Agreement (Art. 51(3)(e)), harmonize reporting processes, and help avoid duplicative reporting requirements across different parts of the Agreement (Arts. 16(2), 23(7), 26(1), 45(3), 54). However, these roles are not explicitly defined in the Agreement and require clarification.

The CI-HM must also address the special requirements of developing States and the particular circumstances of Small Island Developing States (SIDS), including removing "undue obstacles or administrative burdens" and potentially facilitating "specific programs for those States" (Art. 51(5)).

This list of roles and potential roles for the CI-HM is not exhaustive. The CoP may assign the CI-HM additional functions (Art. 51(3)(g)), allowing for future expansion as implementation needs evolve.

[6] Notwithstanding CBTMT-relevant information shared in other parts of the Agreement, e.g., notifications under Part II.

## 2. Connection with the CoP and other subsidiary bodies

The CI-HM's functions are cross-cutting, and it will interact directly with several subsidiary bodies.

**The ABSC** has the mandate to make recommendations to the CoP on matters relating to Part II of the Agreement (Art. 15(3)) – including on CI-HM matters – and to monitor its implementation (Art. 16(2)(3)). While some Party submissions to the ABSC will be shared through the CI-HM (Art. 15(4)), implementation reports will go directly to the ABSC (Art. 16(2)). Given the CI-HM has a central role in the notification system, the ABSC will rely heavily on it to fulfill its mandate.

**The CBTMT Committee** has the mandate to monitor and review the implementation of Part V of the Agreement and to make recommendations to the CoP (Art. 45(2)). The reporting modalities for Parties on the implementation of Part V to the CBTMT Committee do not explicitly mention the CI-HM (Art. 45(3)). However, the Committee will likely draw on CI-HM information given the mechanism's specific roles under Part V, such as facilitating needs assessments and matching capacity needs with available support.

**The Implementation and Compliance Committee (ICC)**, in facilitating implementation and promoting compliance (Art. 55(1)), may draw on information from other subsidiary bodies (Art. 55(4)), including the CI-HM.

**The STB's** views on EIAs will be made public via the CI-HM (Art. 31(1)(a)(vi)) and it will require the mechanism as an information source as it fulfills its mandate under Part IV of the Agreement.

## 3. Key issues for resolution

### 3.1 Summary of PrepCom 1 and PrepCom 2

At PrepCom 1, Parties supported an incremental and phased approach to operationalizing the CI-HM, including the development of a pilot or interim phase. There was convergence on establishing a dedicated intersessional working group to advance operationalization, particularly on technical aspects. The group's composition, size, scope, and modalities were to be finalized at PrepCom 2. There was also a common understanding that such efforts should focus on the core functions across all parts of the Agreement, rather than taking a sectional approach.

During PrepCom 2, Parties discussed the draft terms of reference (ToR) for an informal group on the CI-HM's technical aspects but reached no conclusion. Based on discussions, the Co-Chairs identified specific tasks to be completed by PrepCom 3 and committed to ensuring their delivery, in consultation with the Bureau[7]. The UN Division for Ocean Affairs and the Law of the Sea (DOALOS) commissioned a consultant to prepare detailed input into some of the areas of work an informal group would undertake[8], including: a stock take of existing clearing-house mechanisms, options for addressing technical requirements, a draft roadmap for the phased operationalization of the CI-HM, and a draft workplan for the initial phase. Some of these deliverables have been circulated to delegations, while others are still in progress. All will be discussed at PrepCom 3.

PrepCom 2 also addressed the need for interim arrangements to ensure the functioning of the CI-HM at entry into force. Given the importance of the CI-HM for implementation, several delegations supported this. How it would be achieved, however, remained unclear.

[7] Statement by the Co-Chairs of the Preparatory Commission at the closing of the second session, A/AC.296/2025/19
[8] Terms of reference for a study on the technical aspects of the operationalization of the Clearing-House Mechanism under the BBNJ Agreement: https://www.un.org/bbnjagreement/sites/default/files/2025-10/20251016BBNJCHMStudyConsultancyTORs.pdf

### 3.2 Key issues for resolution at or before PrepCom 3

The CI-HM plays a central role in the BBNJ Agreement. To enable Parties to fulfill their information-sharing obligations, key issues need to be addressed before or during PrepCom 3:

- Parties will need **clear, practical guidance on how to submit information** (e.g., EIA reports) between entry into force and the operationalization of the CI-HM. This is essential to ensure compliance with information-sharing obligations under the Agreement.
- States should **review any arrangements** already in place by PrepCom 3 and come prepared with specific feedback and suggestions for improvements.
- **Parties should adopt an ambitious roadmap for the rapid operationalization** of the CI-HM at or shortly after PrepCom 3, drawing on the results of the CI-HM consultant's study. The roadmap should include a pilot phase between PrepCom 3 and CoP1 that allows States to gain hands-on experience with the system, including training on how to use it.

#### Phased approach and minimum elements

The High Seas Alliance further emphasizes that CI-HM operationalization should follow a functional approach rather than prioritizing specific parts of the Agreement. To enable rapid operationalization, a phased approach is advisable so that basic function can be put in place as early as possible[9].

These basic functions – that should already be integrated into any interim arrangements or be added as soon as feasible – include the following:

1) Information sharing and notification tasks assigned to the CI-HM under Part II, IV, and V of the BBNJ Agreement.
2) Generating BSBIs under Part II of the Agreement[10] for monitoring MGRs.
3) The matchmaking role envisioned for the CI-HM in Part V for capacity building.

Functionalities to support these should include, at a minimum:

- **User management.**
- **Upload and download functions:** These are central to exchanging information and data among stakeholders and ensuring effective and transparent CI-HM. Uploading information (e.g., MGR notifications, EIA reports, and the supply and demand of CBTMT) will enable States to fulfill their obligations under the Agreement, ideally from when it enters into force, and ensure that essential information reaches other Parties and stakeholders.
- **An alert or notification mechanism:** This is essential to keep Parties and other stakeholders informed about relevant updates and newly uploaded information. Such a mechanism is particularly crucial when specific deadlines for action exist, such as comment periods under Part IV. For EIA elements, notifications should be sent in real time via system-generated emails to ensure that all Parties remain up to date and respond promptly.
- **Data security measures:** These are crucial for preserving information integrity and reliability. Parties should prioritize protections against unauthorized access, alteration, or disclosure, along with regular data backup protocols to mitigate risks of cyber threats, technical failures, or natural disasters, ensuring the continuous availability of critical information.

The early phase must address:

1) Generating batch identifiers under Part II of the Agreement for monitoring MGRs.
2) The matchmaking role envisioned for the CI-HM in Part V for capacity building.
3) Information sharing and notification tasks assigned to the CI-HM under Part IV for EIAs.

Functionalities to support these include, at minimum: user management, information submission and access (e.g., upload and download functions), and data security measures.

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[9] NRDC/OceanCare/High Seas Alliance paper on the CI-HM: https://www.oceancare.org/wp-content/uploads/2025/08/Final_Aug-17_NRDCOCHSA_CLHM-paper_3-logos_distribution-2.pdf.

[10] Recognizing that, for the initial interim phase, these may be temporary identifiers until the final syntax is agreed by the CoP.

### Additional key considerations on the CI-HM study

The consultant's study on the technical aspects of the operationalization of the CI-HM[11] is an important contribution to PrepCom 3 discussions. In reviewing the study, the High Seas Alliance recommends Parties consider, in addition to the above, whether the following points are adequately reflected:

- **BSBIs**: To remain true to the original intent, the report should focus on human-readable batch identifiers. Temporary identifiers may be needed between entry into force and the full operationalization of the CI-HM as an interim solution.
- **Ensuring accessibility:** The CI-HM functionalities must maintain a human dimension. Accessibility requirements – including those for low-connectivity contexts and SIDS considerations under Article 51(5) – may require lightweight access options (such as an app) that allow offline functionality. Additionally, effective CBTMT matching requires a robust setup, including human-mediated aspects. Existing platforms could be used until the CI-HM is fully operational.
- **Alert function**: Proactive alert functions, with relevant filters, are a priority for small States, and may be equally important to other stakeholders, such as scientists from developing countries seeking timely opportunities to participate in research cruises[12].

### Full operationalization of the CI-HM

As the CI-HM progresses towards becoming fully operational, the High Seas Alliance recommends that the following be given full consideration:

- **User-friendly design:** A user-friendly interface, flexible content management system (CMS), and multilingual accessibility are essential to ensure all stakeholders can effectively engage with and contribute to the mechanism, regardless of technical expertise or language. This promotes inclusivity, transparency, and widespread compliance with the BBNJ Agreement.
- **Clarity on Part III functions**: While the CI-HM is tasked with accessing, providing, and disseminating information on the establishment and implementation of ABMTs, including MPAs (Art. 51(3)(a)(ii)), Part III does not specify when and how it should perform this function. Given the CI-HM's broad potential under this part of the Agreement, Parties must establish a clear path forward, including defining the type and scope of information required as well as any standardized formats.
- **Adaptability:** Given the evolving nature of the CI-HM – both in implementation and potential subsequent needs – the mechanism should be adaptable, with future technical support and maintenance requirements considered from the outset.
- **Human resources:** Implementation requires dedicated staff to support the CI-HM's functions[13], including regular manual curation to ensure information is well-presented, accessible, up-to-date, and easy to find. A robust search and filter function is important.

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[11] Terms of reference for a study on the technical aspects of the operationalization of the Clearing-House Mechanism under the BBNJ Agreement: https://www.un.org/bbnjagreement/sites/default/files/2025-10/20251016BBNJCHMStudyConsultancyTORs.pdf.

[12] https://www.unsw.edu.au/news/2025/12/bbnj-batch-identifier-democratise-ocean-science

[13] With regard to the CBTMT provisions and taking into account Article 51(5), this could include human capacity to:

- Proactively gather relevant information, especially on CBTMT opportunities, potentially through regionally distributed personnel supporting the CI-HM.
- Ensure adequate manual oversight and quality control when matching CBTMT opportunities with needs, and enable States to request bilateral support (e.g., via a call or chat) for using this CI-HM function.
- Provide needs-tailored capacity building on the use of the CI-HM for States and other users (if any), with special consideration of Article 51(5). This could include, but should not be limited to:
    - Pre-recorded videos explaining how to use the platform and how Parties can engage with the tool should be made available.
    - Videos and other instructional materials should be supplemented with a live-help mechanism, such as a chat function during office hours and, within reasonable limits and resources available, the possibility to schedule bilateral support calls, e.g. to support first time users in correct and consistent data entry.

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The High Seas Alliance is a group of 70+ non-governmental members who work together to inspire, inform and engage the public, decision makers and experts to support and strengthen High Seas governance and conservation.

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